

Court No. - 3

Case :- WRIT - C No. - 22712 of 2013

Petitioner :- Sanjeev Verma

Respondent :- State Of U.P. And 4 Ors.

Petitioner Counsel :- Ravi Sahu

Respondent Counsel :- C.S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Rakesh Srivastava,J.

Put up on 2nd May, 2013 as fresh.

In the meantime instructions be obtained.

Order Date :- 24.4.2013

PKB

Court No. - 21

Case :- WRIT - C No. - 22712 of 2013

Petitioner :- Sanjeev Verma

Respondent :- State Of U.P. And 4 Ors.

Petitioner Counsel :- Ravi Sahu

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Vipin Sinha,J.

As prayed by the learned counsel for the petitioner, put-up as fresh before the appropriate Bench on 8th May, 2013.

Order Date :- 2.5.2013

Ajeet...

Court No. - 3

Case :- WRIT - C No. - 22712 of 2013

Petitioner :- Sanjeev Verma

Respondent :- State Of U.P. And 4 Ors.

Petitioner Counsel :- Ravi Sahu

Respondent Counsel :- C.S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Rakesh Srivastava,J.

Heard learned counsel for the petitioner and Sri Nishikant Tripathi, brief holder of learned counsel for the respondent no. 2 to 4.

The grievance of the petitioner is that he is in possession of the house belonging to respondent no. 5 and under the instructions of respondent no. 5, electricity supply has been disconnected and the respondent no. 5 is also not willing to permit the petitioner to take electric connection. The petitioner also submitted a representation before the respondent for supply of electricity.

We find on the perusal of Electricity Supply Code, 2005 that a lessee/tenant/occupier can submit an application for independent electricity connection under Clause 4.4. of the Code (annexure 4.3) where the applicant is unable to obtain consent of the owner. The petitioner can submit an application under the said provision.

We, therefore, **dispose of** the writ petition directing that if the petitioner submits a fresh application for new connection of electricity under the said provision, the same shall be considered and decision thereon shall be taken within a period of 15 days from the date of its submission.

Order Date :- 9.5.2013

Dhirendra